

JUSTIFICATION  
FOR AN EXCEPTION TO FAIR OPPORTUNITY

1. Contracting Activity: Department of Veterans Affairs (VA)  
Office of Procurement, Acquisition, and Logistics  
Technology Acquisition Center  
23 Christopher Way  
Eatontown, NJ 07724
  
2. Description of Action: The proposed sole source action is for a Time and Materials modification for a one (1) month extension to task order 36C10B20N10060037 issued under Transformation Twenty-One Total Technology Next Generation (T4NG) Contract VA118-16-D-1006 for Benefits Appeals and Memorials (BAM) Program Management Office (PMO) and Technical Management Support with Favor TechConsulting, LLC (FTC), 8075 Leesburg Pike STE 300, Vienna VA 22182.
  
3. Description of the Supplies or Services: VA requires an additional one-month extension for the current BAM PMO support contract to provide for an orderly transition of the BAM PMO and Technical Management support services as the competitive task order award is anticipated within the week. The scope of the BAM PMO support task order is to provide information technology (IT) PMO and technical support for the BAM Portfolio. The BAM Portfolio delivers Benefits systems that must ensure reliable, secure, and seamless delivery of benefits and services directly to Veterans and their families. The BAM Portfolio serves its business customers, Veterans Benefits Administration (VBA), Board of Veterans Appeals (BVA), and National Cemetery Administration (NCA) to develop and manage advanced technology solutions. BAM is also predominantly responsible for supporting the execution of The Sergeant First Class (SFC) Heath Robinson Honoring our Promise to Address Comprehensive Toxics (PACT) Act requirements as it relates to the delivery of benefits to Veterans with exposure to environmental hazards. In August of 2022, the PACT Act was signed into Law by the President. This legislation is considered one of the largest healthcare and benefit expansion in VA history. Accordingly, it is critical to ensure Veterans obtain the benefits they are entitled to as soon as possible, which would lead to the success of the BAM portfolio mission and its delivery of PACT Act initiatives that VA continues to obtain BAM PMO support. Specifically, the support services provided under the current task order that will be extended include requirements management, implementation management, release management, schedule support, strategic analysis, capital planning and investment support, engineering and technical support, communications, and administrative support.

The current BAM PMO task order was awarded with a 12-month base period with three (3) 12-month option periods. The last option period was set to expire on July 21, 2024. A new competitive task order was awarded on June 16, 2024 under the U.S. General Services Administration (GSA) Veterans Technology Services (VETS) 2 Governmentwide Acquisition Contract (GWAC) by the Technology Acquisition Center (TAC) to Microhealth, LLC. On July 1, 2024, one (1) unsuccessful offeror filed a GAO

protest challenging the BAM PMO Support task order award to Microhealth LLC, resulting in the stay of contract performance of that award pursuant to 31 U.S.C. & 3553 (d)(3)(A)(ii). Due to the receipt of the GAO protest, a three-month extension was executed which moved the completion date of the current task order to October 21, 2024. On September 27, 2024, GAO dismissed the protest due to the Government's proposal to take corrective action (CA) by re-evaluating the offers received for the competitive procurement. At that time, an additional three-month extension to the current task order was executed, extending the performance completion date of the task order to January 21, 2025, in order to provide sufficient time for VA to complete its re-evaluation, execute any changes necessary for the competitive award, and transition these services to a new task order. However, an additional protest regarding VA's decision to take CA, and GAO's subsequent dismissal of the original protest, was received by GAO on October 8, 2024. While this additional protest was ultimately dismissed by GAO on October 30, 2024, the unexpected receipt of this protest and the time necessary to review the protester's concerns regarding the CA being taken by VA, resulted in additional delays of the re-evaluation and award for the competitive task order. The re-award of the competitive task order is now anticipated within the week; however, VA lacks sufficient time to enact an orderly transition for this critical support if the current task order expires on April 21, 2024. As such, an additional one-month extension to the BAM PMO Support task order 36C10B20N10060037 is being sought to ensure the services are successfully transitioned to the new competitively awarded task order. This support is considered mission-critical and must continue without any degradation or disruption during this transition or there will be a negative impact to the schedules of many BAM portfolio projects as well as unnecessary risk and cost.

The period of performance for this extension will be from April 22, 2025 through May 21, 2025, which will ensure there will be no lapse in support and an orderly transition of the services.

[REDACTED]

4. Statutory Authority: The statutory authority permitting an exception to fair opportunity is Section 41 U.S.C. 4106(c)(2) as implemented by the Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(B), entitled "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized."

5. Rationale Supporting Use of Authority Cited Above: The proposed source for this action is FTC, 8075 Leesburg Pike STE 300, Vienna VA 22182. FTC is the incumbent contractor on the BAM PMO Support task order. Based on market research, which can be found in Section 8 of this document, it was determined that FTC is the only responsible source capable of satisfying VA's BAM PMO Support in the required timeframe. No other source can provide the aforementioned support and continuity of services necessary to provide an orderly transition of the services to the new competitively awarded task order. This extension will provide for the timely continuance

of this critically needed support in order to ensure there is no gap in service while the transition between task orders is occurring, after the anticipated award of the competitive task order within the week.

FTC is the only source capable of providing the services required during the required timeframe as it is the only contractor that has over 150 pre-cleared, trained, and onboarded staff able to provide the necessary BAM technical and programmatic support to ensure continuity of support and an orderly transition of the services. FTC contract support staff and engineering teams are fully integrated into teams across the BAM portfolio which is comprised of seven (7) Product Lines. Product lines are used to consolidate systems and projects that share a business strategy, objectives, and customers within a common structure to gain efficiencies in infrastructure, automation, and deployment. FTC operates within the entirety of the portfolio at all levels supporting management and the delivery of the Benefits' systems utilized by VA. BAM needs continued support in the areas of project and program management, risk management, requirements management, strategic planning and analysis support, meeting, documentation, and data support, capital planning and investment support, financial information integration and reporting support, change management, configuration management, schedule support, communications, data calls, and action items support, engineering and technical support, requirements planning and management, architecture and design phase support, release management support, security requirements development and management. This support requires close coordination of requirements and communications across product lines, portfolios, to support the marked increase of internal and external VA communication and reporting requirements. As such, BAM PMO contract support is essential to ensure VA OIT and the BAM portfolio can adequately respond to the surge of reporting and communication requirements, as well as manage the tremendous increase in development, and modernization initiatives required to enable VBA systems to accomplish PACT Act legislation requirements. From a functional, technical, and administrative perspective, the time required to compete, award, and onboard resources under a separate contract vehicle to provide PMO support would take at least three months (i.e. longer than the length of this extension) of procurement lead-time and cause unacceptable delays in critical program activities. These delays would severely disrupt the current benefits modernization initiatives and delivery against the PACT Act legislation which has been briefed to Congress, impact programmatic and technical timelines all of which would introduce significant added financial costs and technical risk. Any other vendor would need an estimated 30 days to onboard, train, and integrate a significant number of resources within the BAM PLs in order to provide the required BAM PMO support; therefore, only FTC has the ability to continue providing the necessary support starting on day one as well as provide an orderly transition of the services to the new competitively awarded task order. As such, this task order extension is essential to avoid any gap in the BAM PMO services being provided that support VA's mission to improve benefit claims processing, case management, and benefits and service delivery of benefits and services to Veterans of the United States while services are being transitioned between task orders.

6. Efforts to Obtain Competition: Market research was conducted, details of which are in the market research section of this document. This effort did not yield any additional sources that can meet the Government's requirements. Specifically, aside from FTC, there are no other sources capable of providing the services required with the ability to start work immediately to ensure VA continues to receive BAM PMO support without any disruption or degradation of support while the services are being transitioned to a new competitive task order. There is no competition anticipated for this acquisition. In accordance with FAR 5.301 and 16.505(b)(2)(ii)(D), the award notice for this action will be synopsized on the Contracting Opportunities website, SAM.gov and the justification will be made publicly available within 14 days of award.

7. Actions to Increase Competition: The requirements under this effort were initially competed under a competitive acquisition. After receipt of a GAO protest, VA reevaluated the offers received for the competitive procurement, taking into account the corrective measures recommended by GAO, and will be re-issuing a competitively awarded TO for these services within the week. Future requirements are expected to be competed.

8. Market Research: Market research was performed for this action. VA has continued to conduct market research throughout this process; however, no source, other than FTC, would be capable of providing the aforementioned support during this period, due to the lack of being able to successfully on-ramp and gain the highly specialized knowledge needed in time to guarantee no failures in support as detailed above in Section 5 of this justification. This extension will provide for the timely continuance of this critically needed support in order to ensure there is no gap in service or performance degradation while the services are being transitioned to the new competitive task order, which will be awarded within the week.

9. Other Facts: None.

10. Technical and Requirements Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

 Date: 4/17/25  
IT Program Manager Signature: 

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price to the Government for this contract action will be fair and reasonable based on comparison with the Independent Government Cost Estimate and price analysis.

 Date: 4/17/25  
Procuring Contracting Officer Signature: 

12. Procuring Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

 Date: 4/17/25  
Procuring Contracting Officer Signature: 

## Approval

In my role as procuring activity Advocate for Competition, based on the foregoing justification, I hereby approve the acquisition of a one (1) month extension to task order 36C10B20N10060037 for BAM PMO Support on an other than fair opportunity basis pursuant to the authority cited in Section 4 above, subject to availability of funds, and provided that the services herein described have otherwise been authorized for acquisition.

Date: 4/17/25

Signature: \_\_\_\_\_

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Advocate for Competition  
Technology Acquisition Center  
Office of Procurement, Acquisition, and Logistics